

26TRCV00103 26TRCV00103

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 26TRCV00103 Hearing Date: September 21, 2026 Dept: B

Moving Parties: Defendant Eclipse RTO,
LLC, dba Rent-A-Center

Responding Party: None

(1)

Motion

to Compel Initial Responses to Form Interrogatories (Set One)

(2)

Motion

to Compel Initial Responses to Special Interrogatories (Set One)

(3)

Motion

to Compel Initial Responses to Request for Production of Documents (Set One)

The Court considered the moving papers. No opposition was filed.

RULING

The motions are GRANTED.

See Order below.

BACKGROUND

On January

12, 2026, plaintiff Renita Robinson filed a complaint against Rent-A-Center,

Eclipse RTO LLC, and Akash Bhakta for (1) battery, (2) negligence, (3) IIED, (4) public nuisance, (5) strict products liability – failure to warn, (6) breach of express warranty, and (7) breach of implied warranty based on a bed bug infestation as to a used coach plaintiff purchased on January 20, 2024 and which was delivered to her home.

LEGAL

AUTHORITY

Interrogatories

If a party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction.

CCP §2030.290(b). The statute

contains no time limit for a motion to compel where no responses have been served. All that need be shown in the

moving papers is that a set of interrogatories was properly served on the

opposing party, that the time to respond has expired, and that no response of any kind has been served. *Leach v. Superior*

Court (1980) 111 Cal. App. 3d 902, 905-906.

Request

for Production of Documents

Where

there has been no timely response to a CCP §2031.010 demand, the demanding party must seek an order compelling a response.

CCP §2031.300. Failure to timely

respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline

for a motion to compel responses.

Likewise, for failure to respond, the moving party need not attempt to

resolve the matter outside court before filing the motion. Where the motion seeks only a response to the

inspection demand, no showing of “good cause” is required. *Weil & Brown, Civil Procedure Before Trial*, 8:1487.

DISCUSSION

Defendant Eclipse RTO,

LLC, dba Rent-A-Center requests an order compelling plaintiff Renita Robinson to serve responses without objections to defendant's initial form and special interrogatories and requests for production of documents.

Defense counsel states

in her declaration that on March 23, 2026, defendant served its discovery requests on plaintiff. Responses were due April

24. On April 24, plaintiff's counsel

requested a three-week extension to May 8, which defense counsel granted. On June 17, defense counsel sent an email to plaintiff's counsel stating that no responses had been received and objections were waived and requesting responses by June 24. On July 23, defense counsel sent another email requesting responses by July 27.

On July 23, plaintiff's counsel requested an extension to July 31. As of the filing date of the motions, defense counsel had not received responses.

The Court finds that defendant

properly served discovery requests and that plaintiff failed to timely respond.

The motions are GRANTED.

Sanctions

Under CCP § 2023.030(a), "[t]he court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct. . . . If a monetary sanction is authorized by any provision of this title, the court shall impose that sanction unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Under CCP § 2023.010, an example of the misuse of the discovery process is "(d) Failing to respond or to submit to an authorized method of discovery."

Sanctions

are mandatory in connection with motions to compel responses to interrogatories and requests for production of documents against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel unless the court "finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." CCP §§ 2030.290(c), 2031.300(c).

Cal. Rules of Court, Rule 3.1348(a) states: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."

Defendant requests sanctions in the amount of \$720 (\$330/hr. x 2 hrs., filing fee) for each motion against plaintiff and her attorneys of record, Ilan N. Rosen Janfaza of the Law Offices of Ilan N. Rosen Janfaza, A.P.C. The Court finds that sanctions are warranted in the total amount of \$1170 (\$330/hr. x 3 hrs., \$180 filing fees) against plaintiff and plaintiff's attorney of record.

ORDER

The motions are GRANTED.

Plaintiff

Renita Robinson is ordered to serve code-compliant responses without objections to defendant's Form Interrogatories, Set One and Special Interrogatories, Set One, within twenty days.

Plaintiff

Renita Robinson is ordered (1) to serve on defendant a verified response without objections to defendant's Request for Production of Documents, Set One, and (2) to produce all documents and things in plaintiff's possession, custody, or control, which are responsive to defendant's request, within twenty days.

Plaintiff

and her attorney of record, Ilan N. Rosen Janfaza, jointly and severally, are ordered to pay sanctions in the amount of \$1170 to defendant within thirty days.

Moving

defendant is ordered to give notice of this ruling.